



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

NEW HIRE CHECKLIST

Employee Name: Marco Rubino

Employee ID #: 735

Hire Date: 11/25/19

1. For Controller to do prior to New Hire starting:

- ☒ Set up Computer Profile, Windows Login
- ☒ Set up Microsoft Office 365 (email, calendar, skype, intranet services)
- ☒ Set up Inform-ERP System
- ☒ Set up Johnstone Employee Network (JEN/JXI)
- ☒ Set up Voicemail (Extension)
- ☒ Add to Phone List
- ☒ Set up as User in Address Book in Copiers & Printers
- ☒ Set up in Johnstone University- JU Online
- ☒ Set up Johnstone Email
- ☒ Set up Building Access & Alarm Code

2. For HR to do with New Hire - complete the following items during orientation:

- ☒ Sign Offer Letter
- ☒ Application
- ☒ Sign Job Description
- ☒ New Hire Form/Employee Information Form
- ☒ Pay Rate Acknowledgement-2 copies
- ☒ W4 Tax Withholding Form
- ☒ IT-2104 Employee's Withholding Allowance Certificate
- ☒ Post-Offer Self-Identification Form
- ☒ I-9 Eligibility Form
- ☒ Direct Deposit Form
- ☒ Benefits Overview
- ☒ Receipt of Handbook
- ☒ Receipt of Non-Harassment Policy
- ☒ Receipt of Sexual Harassment Prevention Policy & Complaint Form
- ☒ Receipt of Smoking Policy
- ☒ Receipt of Confidentiality Policy
- ☒ Authorization to Deduct Expenses



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☒ Employee Account Information

3. HR will hand Employee during orientation:

- ☒ Employee Handbook
- ☒ Copy of Benefits Overview
- ☒ Skylight Pay Options Program
- ☒ New Health Insurance Marketplace Coverage
- ☒ COBRA General Notice
- ☒ Allworx Voicemail Greetings Setup Guide
- ☒ Payroll Schedules
- ☒ Benefit Contact List
- ☒ Copy of Pay Rate Acknowledgement Form
- ☒ Copy of Job Description
- ☒ Copy of Offer Letter

4. HR to do Training during New Hire's orientation:

- ☒ Sexual Harassment Prevention Training

5. For HR to do on New Hire's first day after orientation is complete:

- ☒ Set up in Payroll and Time & Attendance
- ☒ Add to Org Chart
- ☒ Scan New Hire paperwork and Save to Online Employee File
- ☒ Create Personnel, Medical & Payroll files & Labels for New Hire paperwork
- ☒ File Form I-9 in Active Forms I-9 Folder
- ☒ File Background Check forms and information in the Background Check File
- ☒ Add Employee to Payroll File and Commission/Bonus File online

☐



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October 27, 2019

Mr. Marco Rubino
67 State Route 56
Potsdam, NY 13676

Dear Marco:

I am pleased to offer you the position of Territory Sales Manager for Johnstone Supply of Central NY. This letter is to confirm my offer and your acceptance of the position. You will be reporting directly to me as your Regional Sales Manager. Your compensation package includes three components: salary, commission/bonus, and a benefit program. This position will pay biweekly at the rate of \$60,000/year. Additionally, over the next 15 months, we will guarantee an additional \$50,000 (\$3,333.33/month) in salary draw. Over the next 3-4 months we will review your performance and will work with you to develop a commission and bonus based upon several factors including gross profit. Subsequently, your commission will be compared to your draw and you will receive the greater of the two.

Since transportation will be an integral part of your job you will be provided with a suitable company vehicle for your use professionally. A gas card will also be provided for business use only.

Lastly, with the successful completion of 90 days of employment you will become eligible for a number of full employment benefits as outlined on the accompanying page.

Subject to a routine motor vehicle and background check your starting package is based upon your indications and statements to me and others in our company that you are fully capable of meeting the requirements and description of the job as has been outlined to you previously. This offer is made on an "at will" basis and should not be construed as a guarantee of employment for any specific duration.

Please indicate your acceptance of our offer by signing below and returning one copy of the letter, with your original signature, to me no later than November 11, 2019. We would appreciate having your decision as soon as possible, but please feel free to talk to me further if you have any questions.

Marco, I am confident that you have the skills, enthusiasm, and talent to be successful in this challenging position. I look forward to having you on my team.

Welcome to JOHNSTONE SUPPLY!
Sincerely,

Darrell Sterling, Regional Sales Manager
Enclosures (5)

Est. start date 11-15-19

By signing below, you are accepting this position and our offer.

Marco Rubino

Date

10/29/19

Please Print Clearly

APPLICATION FOR EMPLOYMENT

Company Name Johnstone Supply of CNY

Date 11/25/19

Please Answer All Questions. *Résumés Are Not A Substitute For A Completed Application.*

We are an equal opportunity employer. Applicants are considered for positions without regard to veteran status, uniformed servicemember status, race, color, religion, sex, national origin, age, physical or mental disability, genetic information or any other category protected by applicable federal, state, or local laws.

For Rhode Island Employers Only: This Company is subject to the Workers' Compensation laws of the State of Rhode Island.*

THIS COMPANY IS AN AT-WILL EMPLOYER AS ALLOWED BY APPLICABLE STATE LAW. THIS MEANS THAT REGARDLESS OF ANY PROVISION IN THIS APPLICATION, IF HIRED, THE COMPANY OR I MAY TERMINATE THE EMPLOYMENT RELATIONSHIP AT ANY TIME, FOR ANY REASON, WITH OR WITHOUT CAUSE OR NOTICE.

Applicant Name Marco Rubino Position Applied For Territory Sales Manager (list only one)

Telephone Number (315) 235-9572 Alternate/Cellular Telephone Number () _____

Present Address 1333 Lincoln Ave

Utica NY 13502 Street, Apartment, or Unit Number
City State Zip

How long have you lived there 3 Years/Months

Email Address (optional) aramarjus78@gmail.com

If under the age of 18, can you produce the necessary work certificate at the time of employment? Yes ☐ No ☐

Type of employment desired? Full-time ☒ Part-time ☐ (Specify Hours) _____

Are you willing to work overtime? Yes ☒ No ☐ Date on which you can start work if hired _____

Have you previously applied for employment with this Company? Yes ☐ No ☒

If Yes, when and where did you apply? _____

Have you ever been employed by this Company? Yes ☐ No ☒

If Yes, provide dates of employment, location and reason for separation from employment. _____

If applicable, below list any other names by which you have been known which may be necessary to allow us to confirm your work and educational record. For example, change of name, use of an assumed name, nickname, etc.

Education	School Name and Location (Address, City, State)	Course of Study or Major	Graduate? Y or N	# of Years Completed	Honors Received
High School	<u>Procter High School</u>	<u>basic/regents</u>	<u>Y</u>	<u>4</u>	<u>Regents</u>
College	<u>Utica College</u>	<u>PR/communication</u>	<u>Y</u>	<u>4</u>	<u>Bachelors</u>
Graduate/ Professional	<u>Building Performance Institute</u>	<u>Analyst/ Shell</u>	<u>Y</u>	<u>1</u>	<u>BA/shell</u>
Trade or Correspondence					

WORK EXPERIENCE

Please list the names of your present and/or previous employers in chronological order with present or most recent employer listed first. Provide information for at least the most recent ten (10) year period. Attach additional sheets if needed. If self-employed, supply firm name and business references. You may include any verifiable work performed on a volunteer basis, internships, or military service. Your failure to completely respond to each inquiry may disqualify you for consideration from employment. Do not answer "see résumé."

Employer

Employer Loves 61 county lane Palsdam NY Rela.1
Name Address Type of Business
Telephone 315, 268-6960 Dates Employed From 04 / 01 / 2018 To 11 / 20 / 2019
Job Title Project Specialist Extensir Duties Manage and produce Extensir Sales
Supervisor's Name Dash Henderson May we contact? ☒ Yes ☐ No If No, why not? _____
Reason for Leaving? Better opportunity with Johnskere Supply
What will this employer say was the reason your employment terminated? left for better opportunity
Were you ever disciplined? If so, for what? NO
How much notice did you give when resigning? If none, explain. 2 weeks

Employer

Employer Hallex Energy Co. utica NY 13502 Heating/cooling weatherab-
Name Address Type of Business
Telephone () N/A 315-735-2000 Dates Employed From 01 / 20 / 2008 To 01 / 20 / 2015
Job Title Sales Manager Duties Sales manage sales
Supervisor's Name Mike Pluke May we contact? ☒ Yes ☐ No If No, why not? _____
Reason for Leaving? Better opportunity
What will this employer say was the reason your employment terminated? unknown
Were you ever disciplined? If so, for what? NO
How much notice did you give when resigning? If none, explain. 2 weeks

Have you ever been terminated or asked to resign from any job?

☐ Yes ☒ No If Yes how many times? _____

Has your employment ever been terminated by mutual agreement?

☐ Yes ☒ No If Yes how many times? _____

Have you ever been given the choice to resign rather than be terminated?

☐ Yes ☒ No If Yes how many times? _____

If you answered Yes to any of the above three questions, please explain the circumstances of each occasion.

REFERENCES [Optional]

Please list the names of additional work-related references we may contact. Individuals with no prior work experience may list school or volunteer-related references.

NAME	POSITION	COMPANY	WORK RELATIONSHIP (i.e. supervisor, co- worker)	TELEPHONE
Bob Brookins	Project Specialist	Loves	Co-worker	315-459-3673
Rich Murdoch	Sales	ABC supply	Co-worker	315-224-0225

Please list the names of personal references (not previous employers or relatives) who you know that we may contact.

NAME	OCCUPATION	ADDRESS	TELEPHONE	NUMBER OF YEARS KNOWN
Harmay Sprad	sty at home	cr. skay	315-542-2396	4
Ryan Lonedro	School	Utica	315-880-8094	2

DRIVING INFORMATION [Optional] (Complete only if driving is an essential function of the job for which you are applying).

Do you have a current valid driver's license? ☒ Yes ☐ No If yes, License No.: 412321782 State: NY

Expiration Date: _____

If you do not have a driver's license for the state in which you currently reside, why not?

Has your license ever been suspended or revoked? ☒ Yes ☐ No

If yes, explain: DMV Mistake

Do you have personal automobile insurance? ☒ Yes ☐ No

If no, explain:

Have you ever been denied personal automobile insurance or has it ever been terminated or suspended? ☐ Yes ☒ No If yes, explain:

Please list all moving traffic violations in the last five (5) years:

OFFENSE	DATE	LOCATION	COMMENTS
disobey traffic device	11-25-19	Utica	
Suspended license	09-2-19	Utica	

APPLICANT CERTIFICATION

I understand and agree that if driving is a requirement of the job for which I am applying, my employment and/or continued employment is contingent on possessing a valid driver's license for the state in which I reside and automobile liability insurance in an amount equal to the minimum required by the state where I reside.

I understand that the Company may now have, or may establish, a drug-free workplace or drug and/or alcohol testing program consistent with applicable federal, state, and local law. If the Company has such a program and I am offered a conditional offer of employment, I understand that if a pre-employment (post-offer) drug and/or alcohol test is positive, the employment offer may be withdrawn. I agree to work under the conditions requiring a drug-free workplace, consistent with applicable federal, state, and local law. I also understand that all employees of the location, pursuant to the Company's policy and federal, state, and local law, may be subject to urinalysis and/or blood screening or other medically recognized tests designed to detect the presence of alcohol or illegal or controlled drugs. If employed, I understand that the taking of alcohol and/or drug tests is a condition of continual employment and I agree to undergo alcohol and drug testing consistent with the Company's policies and applicable federal, state, and local law.

If employed by the Company, I understand and agree that the Company, to the extent permitted by federal, state, and local law, may exercise its right, without prior warning or notice, to conduct investigations of property (including, but not limited to, files, lockers, desks, vehicles, and computers) and, in certain circumstances, my personal property.

I understand and agree that as a condition of employment and to the extent permitted by federal, state, and local law, I may be required to sign a confidentiality, restrictive covenant, and/or conflict of interest statement.

I certify that all the information on this application, my résumé, or any supporting documents I may present during any interview is and will be complete and accurate to the best of my knowledge. I understand that any falsification, misrepresentation, or omission of any information may result in disqualification from consideration for employment or, if employed, disciplinary action, up to and including immediate dismissal.

THIS COMPANY IS AN AT-WILL EMPLOYER AS ALLOWED BY APPLICABLE STATE LAW. THIS MEANS THAT REGARDLESS OF ANY PROVISION IN THIS APPLICATION, IF HIRED, THE COMPANY OR I MAY TERMINATE THE EMPLOYMENT RELATIONSHIP AT ANY TIME, FOR ANY REASON, WITH OR WITHOUT CAUSE OR NOTICE. NOTHING IN THIS APPLICATION OR IN ANY DOCUMENT OR STATEMENT, WRITTEN OR ORAL, SHALL LIMIT THE RIGHT TO TERMINATE EMPLOYMENT AT-WILL. NO OFFICER, EMPLOYEE OR REPRESENTATIVE OF THE COMPANY IS AUTHORIZED TO ENTER INTO AN AGREEMENT—EXPRESS OR IMPLIED—WITH ME OR ANY APPLICANT FOR EMPLOYMENT FOR A SPECIFIED PERIOD OF TIME UNLESS SUCH AN AGREEMENT IS IN A WRITTEN CONTRACT SIGNED BY THE PRESIDENT OF THE COMPANY. IF HIRED, I AGREE TO CONFORM TO THE RULES AND REGULATIONS OF THE COMPANY, AND I UNDERSTAND THAT THE COMPANY HAS COMPLETE DISCRETION TO MODIFY SUCH RULES AND REGULATIONS AT ANY TIME, EXCEPT THAT IT WILL NOT MODIFY ITS POLICY OF EMPLOYMENT AT-WILL.

I authorize the Company or its agents to confirm all statements contained in this application and/or résumé as it relates to the position I am seeking to the extent permitted by federal, state, or local law. I agree to complete any requisite authorization forms for the background investigation which may be permitted by federal, state and/or local law. If applicable and allowed by law, I will receive separate written notification regarding the Company's intent to obtain "consumer reports."

I authorize and consent to, without reservation, any party or agency contacted by this employer to furnish the above-mentioned information. I hereby release, discharge, and hold harmless, to the extent permitted by federal, state, and local law, any party delivering information to the Company or its duly authorized representative pursuant to this authorization from any liability, claims, charges, or causes of action which I may have as a result of the delivery or disclosure of the above requested information. I hereby release from liability the Company and its representative for seeking such information and all other persons, corporations, or organizations furnishing such information. Further, if hired, I authorize the company to provide truthful information concerning my employment to future employers and hold the company harmless for providing such information.

If hired by this Company, I understand that I will be required to provide genuine documentation establishing my identity and eligibility to be legally employed in the United States by this Company. I also understand this Company employs only individuals who are legally eligible to work in the United States.

THIS APPLICATION WILL BE CONSIDERED ACTIVE FOR A MAXIMUM OF SIXTY (60) DAYS. IF YOU WISH TO BE CONSIDERED FOR EMPLOYMENT AFTER THAT TIME, YOU MUST REAPPLY.

I CERTIFY THAT ALL OF THE INFORMATION THAT I HAVE PROVIDED ON THIS APPLICATION IS TRUE, ACCURATE, AND COMPLETE.

DO NOT SIGN UNTIL YOU HAVE READ ALL OF THE INFORMATION CONTAINED IN THE APPLICATION.

Applicant Signature Marcus P. [Signature] Date 11, 25, 2019

If the applicant is a minor, the foregoing release and consent must be signed by the applicant's parent or legal guardian. Signature by the applicant's parent or legal guardian constitutes acknowledgement by the applicant and the parent or legal guardian that the Company, to the extent permitted by federal, state, and local law, can test the applicant for illegal or controlled substances, conduct inspections of property without notice, and communicate test results to Company personnel who need to know, the applicant, and the applicant's legal guardian.

Parent/Legal Guardian

Witness

Date

Date

UNDER MARYLAND LAW, AN EMPLOYER MAY NOT REQUIRE OR DEMAND, AS A CONDITION OF EMPLOYMENT, PROSPECTIVE EMPLOYMENT, OR CONTINUED EMPLOYMENT, THAT AN INDIVIDUAL SUBMIT TO OR TAKE A LIE DETECTOR, POLYGRAPH, OR SIMILAR TEST. AN EMPLOYER WHO VIOLATES THIS LAW IS GUILTY OF A MISDEMEANOR AND SUBJECT TO A FINE NOT EXCEEDING \$100. I have read and understand the above statement.

Applicant Signature Marcus P. [Signature] Date 11, 25, 2019

IT IS UNLAWFUL IN MASSACHUSETTS TO REQUIRE OR ADMINISTER A LIE DETECTOR TEST AS A CONDITION OF EMPLOYMENT OR CONTINUED EMPLOYMENT. AN EMPLOYER WHO VIOLATES THIS LAW SHALL BE SUBJECT TO CRIMINAL PENALTIES AND CIVIL LIABILITY.

FOR CALIFORNIA APPLICANTS ONLY: BY CHECKING THIS BOX, I WAIVE MY RIGHT TO RECEIVE A COPY OF ANY PUBLIC RECORD OBTAINED BY THE COMPANY FOR EMPLOYMENT PURPOSES THROUGH AN INTERNAL INVESTIGATION. ☐

FEDERAL AND/OR STATE LAW MAY PROHIBIT THE USE OF LIE DETECTOR, POLYGRAPH OR SIMILAR TEST AS WELL.

THIS APPLICATION MAY NOT BE SUFFICIENT FOR ALL INDUSTRIES OR APPROPRIATE FOR USE IN ALL LOCALITIES.

*This employment application not appropriate for use by Rhode Island employers exempt from the state's Workers' Compensation laws.



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JOB DESCRIPTION

Job Title: **Territory Sales Manager**
FLSA Status: **Exempt**
Reports to: **Regional Sales Manager**

Position Summary:

Achieves sales and growth targets by developing new customer accounts and increasing sales within existing accounts.

Subordinate Summary:

This position has no formal supervisory responsibilities.

Essential Job Results and Responsibilities:

Direct Sales Results and Responsibilities

1. Contacts existing and prospective customers to uncover, clarify, or amplify needs & opportunities. Prospects for new customers and finds new quality leads.
2. Qualifies new and existing opportunities to determine revenue potential and creditworthiness.
3. Prioritizes new and existing accounts in terms of margin and profitability. Rebalances time and energy to focus on accounts with the highest growth and margin potential.
4. Positions Johnstone products and services as a strategic advantage to customers by communicating Johnstone's value proposition and business drivers.
5. Recommends products and services to customers, based on customers' business needs.
6. Effectively counters customer objections. Negotiates with customer to grow business while maintaining margin and service targets.
7. Demonstrates and explains the advantages of Johnstone in meeting customer needs. Solicits customer orders while maintaining required margin on all transactions.
8. Establishes and expands relationships with key people and decision-makers within each customer organization. Develops new customers and contacts to expand customer base.
9. Consults with clients after sales to resolve problems and to provide ongoing support.
10. Monitors market conditions, product innovations, and competitors' products, prices, and sales.
11. Proactively follows up on leads generated from within branch stores and other sources.
12. May negotiate details of contracts and payments, and prepares sales contracts and order forms.

Job Description- Territory Sales Manager

Sales Support Results and Responsibilities

1. Develops territory and sales plans to target key customers and prioritize sales activities. Adheres to Johnstone sales process.
2. Reports activities according to established sales process. Accurately forecasts business to management.
3. Participates with management in updating territory plans and setting sales, margin and service goals.
4. Interacts cooperatively with in-store personnel to service existing accounts.
5. Maintains knowledge of new and existing products and inventory by participating in training, studying Johnstone and industry catalogs and web sites, and seeking knowledge from sales manager and experienced sales representatives.

General Results and Responsibilities

1. Adheres to all company policies, procedures and business ethics codes.
2. Represents Johnstone Supply at trade associations, events and local chapters.

Johnstone Supply believes that each employee's contribution should not be limited by the assigned responsibilities. Therefore, it is expected that each employee will offer his/her services wherever and whenever necessary to ensure the success of our endeavors.

Qualifications:

To perform this job successfully, an individual must be able to perform each essential job function satisfactorily. The requirements listed below are representative of the knowledge, skills, and/or abilities required. Reasonable accommodations may be made to enable individuals with disabilities to perform the essential functions.

Education and Experience:

Required:

- High School Diploma / GED required *OR* equivalent combination of education and experience.
- Minimum of 2 years of documented successful direct sales experience.

Preferred:

- 3 or more years of successful direct sales experience.
- Direct sales experience in the business-to-business HVAC/R or similar industry.

Job-Specific Knowledge, Skills & Abilities

- Honest, loyal and ethical, and be capable of participating in a spirited team environment with like values.
- Demonstrated tenacity in achieving sales goals.
- Demonstrated understanding and application of effective sales strategies and techniques.
- Skill in building long term customer relationships.
- Ability to maintain a professional, positive, courteous, and friendly demeanor around

Job Description- Territory Sales Manager

- customers, vendors and employees.
- Skill in proactively communicating (both verbal and written) to establish relationships and influence decisions.
- Excellent negotiation and objection countering skills.
- Skill in solving non-routine, unstructured problems using critical thought to identify the strengths and weaknesses of alternative solutions.
- Strong project management and multi-tasking skills.
- Knowledge of principles and methods of selling products and services.
- Knowledge of Microsoft Office, CRM software, email and internet-based research.
- Ability to manage coworker and customer interactions with tact and diplomacy.
- Self motivated
- Displays persistence, with strong drive to succeed.

Expected Work Behaviors:

- Keeps the company's best interest in mind at all times.
- Consistently works to promote company growth while maintaining ethical standards.
- Maintains a professional personal appearance.
- Strives for continuous self-improvement and for improvement of the business with respect to sales, service quality, and profitability.

Physical Demands & Work Environment:

The physical demands and work environment characteristics described here are representative of those an employee encounters while performing the essential functions of this job. Reasonable accommodations may be made to enable individuals with disabilities to perform the essential functions.

Physical: While performing the duties of this job, the employee is required to drive a car, stand and walk on a hard surface for the majority of the workday. The employee is regularly required to reach with hands and arms, climb and balance; stoop, kneel, crouch or crawl. The employee is frequently required to lift and carry and/or move up to 50 pounds, and occasionally required to lift up to 70 pounds. Specific vision abilities required by this job include close vision, color vision, depth perception, and ability to adjust focus. The ability to speak and hear sufficiently to provide customer service is required.

Work environment: Most work is performed at customer sites with cellular phone, car, and/or computer.

Skills Summary:

Sales Aptitude	Oral Communications
Problem Solving Skills	Organization
Written Communication Skills	Time Management
Energetic	Reading Skills
Interpersonal & Telephone Skills	Computer Skills

Job Description- Territory Sales Manager

Diplomacy

Technical Skills

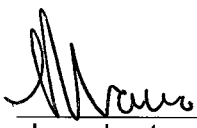
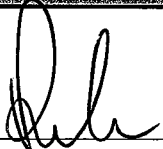
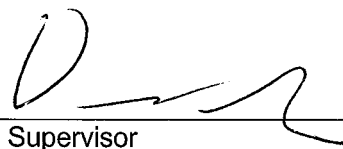
Math Aptitude

Ability to lift up to 70 pounds

Mechanical Skills

The Territory Sales Manager will maintain the strictest confidentiality on all corporate matters including, but not limited to: marketing strategies, operational structures, pricing and all subjects that may have an adverse effect on the company in the marketplace if they were made known outside the company.

Approved by:

  11-25-19  11-25-19
Incumbent Date Supervisor Date



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example, employees who work in New York City may file complaints of sexual harassment with the New York City Commission on Human Rights. Contact their main office at Law Enforcement Bureau of the NYC Commission on Human Rights, 40 Rector Street, 10th Floor, New York, New York; call 311 or (212) 306-7450; or visit www.nyc.gov/html/cchr/html/home/home.shtml.

Contact the Local Police Department

If the harassment involves unwanted physical touching, coerced physical confinement or coerced sex acts, the conduct may constitute a crime. Contact the local police department.

Employee Signature: Marco Rubino

Print Name: Marco Rubino

Date: 11-25-19

Employee Information Form

Employer to Complete

Client Number (735) 0827-6139

Date 11/25/19

Select One ☒ New Employee
☐ Update Current Employee Information
☐ Rehire Previous Employee on Paychex System

Employee Number 735 Department Number 200 Sales 269

Job Title Territory Sales Manager

Hire Date 11/25/2019 Birth Date 06/04/1985

Workers' Compensation Class Code _____ ☒ Full-time ☐ Part-time ☐ Seasonal

Salary (Per Pay Period) \$2307.6923 plus 15 month guarantee
of \$3,333.33 monthly.

OR

Hourly Rate 1 \$ _____ Hourly Rate 2 \$ _____ Hourly Rate 3 \$ _____

Payroll Frequency ☐ Weekly ☒ Bi-weekly ☐ Semi-monthly ☐ Monthly

Federal Exemptions 4 Additional \$ 0 Flat \$ 0

What state does this employee work in? New York

What state should be withholding for this employer? New York

State Exemptions 4 Additional \$ 0 Flat \$ 0

Are local taxes required? ☐ Yes - Town/City/County _____ ☒ No

Will direct deposit be sent to this employee? ☒ Yes ☐ No

Employee to Complete

Last Name Rubino First Name Marco Initial _____

Address 1333 Lincoln Ave County Oneida

City Utica State NY Zip Code 13502

Telephone Number (315) 235-9572 Sex ☒ Male ☐ Female

Work E-mail Address aramarjus78@gmail.com

Personal E-mail Address (optional) _____

Marital Status ☒ Single ☐ Married ☐ Married, but Withhold at Higher Single Rate

Social Security Number 062-70-1566

Emergency Contact Information

Name Harmony Speciale Relationship France

Emergency Telephone (315) 542-2396



**Notice and Acknowledgement of Pay Rate and Payday
Under Section 195.1 of the New York State Labor Law
Notice for Exempt Employees**

1. Employer Information

Name:

The KL Group, Inc.

Doing Business As (DBA) Name(s):

Johnstone Supply of Central NY
Johnstone Supply of Rochester
Johnstone Supply of Syracuse

FEIN (optional):

Physical Address:

77 Halstead St. Suite 3
Rochester, NY 14610

Mailing Address:

Same as Physical Address

Phone: 585-482-8000

3. Employee's pay rate(s): State if pay is based on an hourly, salary, day rate, piece rate, or other basis.

\$ 2307.69 Salary

Employers may not pay a non-hourly rate to a non-exempt employee in the Hospitality Industry, except for commissioned salespeople.

4. Allowances taken:

☒ None

☐ Tips _____ per hour

☐ Meals _____ per meal

☐ Lodging _____

☐ Other _____

5. Regular payday: Friday

6. Pay is:

☐ Weekly

☒ Bi-weekly

☐ Other: _____

7. Overtime Pay Rate:

Most workers in NYS must receive at least 1½ times their regular rate of pay for all hours worked over 40 in a workweek, with few exceptions. A limited number of employees must only be paid overtime at 1½ times the minimum wage rate, or not at all.

This employee is exempt from overtime under the following exemption (optional):

8. Employee Acknowledgement:

On this day, I received notice of my pay rate, overtime rate (if eligible), allowances, and designated payday. I told my employer what my primary language is.

Check one:

☒ I have been given this pay notice in English because it is my primary language.

☐ My primary language is _____ I have been given this pay notice in English only, because the Department of Labor does not yet offer a pay notice form in my primary language.

MarcoRubino

Print Employee Name

Employee Signature MarcoRubino

11/25/2019

Date

Kenneth Livingston, President

Preparer Name and Title

The employee must receive a signed copy of this form. The employer must keep the original for 6 years.

Please note: It is unlawful for an employee to be paid less than an employee of the opposite sex for equal work. Employers also may not prohibit employees from discussing wages with their co-workers.

Form W-4 (2019)

Future developments. For the latest information about any future developments related to Form W-4, such as legislation enacted after it was published, go to www.irs.gov/FormW4.

Purpose. Complete Form W-4 so that your employer can withhold the correct federal income tax from your pay. Consider completing a new Form W-4 each year and when your personal or financial situation changes.

Exemption from withholding. You may claim exemption from withholding for 2019 if **both** of the following apply.

- For 2018 you had a right to a refund of **all** federal income tax withheld because you had **no** tax liability, **and**
- For 2019 you expect a refund of **all** federal income tax withheld because you expect to have **no** tax liability.

If you're exempt, complete **only** lines 1, 2, 3, 4, and 7 and sign the form to validate it. Your exemption for 2019 expires February 17, 2020. See Pub. 505, Tax Withholding and Estimated Tax, to learn more about whether you qualify for exemption from withholding.

General Instructions

If you aren't exempt, follow the rest of these instructions to determine the number of withholding allowances you should claim for withholding for 2019 and any additional amount of tax to have withheld. For regular wages, withholding must be based on allowances you claimed and may not be a flat amount or percentage of wages.

You can also use the calculator at www.irs.gov/W4App to determine your tax withholding more accurately. Consider

using this calculator if you have a more complicated tax situation, such as if you have a working spouse, more than one job, or a large amount of nonwage income not subject to withholding outside of your job. After your Form W-4 takes effect, you can also use this calculator to see how the amount of tax you're having withheld compares to your projected total tax for 2019. If you use the calculator, you don't need to complete any of the worksheets for Form W-4.

Note that if you have too much tax withheld, you will receive a refund when you file your tax return. If you have too little tax withheld, you will owe tax when you file your tax return, and you might owe a penalty.

Filers with multiple jobs or working spouses. If you have more than one job at a time, or if you're married filing jointly and your spouse is also working, read all of the instructions including the instructions for the Two-Earners/Multiple Jobs Worksheet before beginning.

Nonwage income. If you have a large amount of nonwage income not subject to withholding, such as interest or dividends, consider making estimated tax payments using Form 1040-ES, Estimated Tax for Individuals. Otherwise, you might owe additional tax. Or, you can use the Deductions, Adjustments, and Additional Income Worksheet on page 3 or the calculator at www.irs.gov/W4App to make sure you have enough tax withheld from your paycheck. If you have pension or annuity income, see Pub. 505 or use the calculator at www.irs.gov/W4App to find out if you should adjust your withholding on Form W-4 or W-4P.

Nonresident alien. If you're a nonresident alien, see Notice 1392, Supplemental Form W-4 Instructions for Nonresident Aliens, before completing this form.

Specific Instructions

Personal Allowances Worksheet

Complete this worksheet on page 3 first to determine the number of withholding allowances to claim.

Line C. Head of household please note:

Generally, you may claim head of household filing status on your tax return only if you're unmarried and pay more than 50% of the costs of keeping up a home for yourself and a qualifying individual. See Pub. 501 for more information about filing status.

Line E. Child tax credit. When you file your tax return, you may be eligible to claim a child tax credit for each of your eligible children. To qualify, the child must be under age 17 as of December 31, must be your dependent who lives with you for more than half the year, and must have a valid social security number. To learn more about this credit, see Pub. 972, Child Tax Credit. To reduce the tax withheld from your pay by taking this credit into account, follow the instructions on line E of the worksheet. On the worksheet you will be asked about your total income. For this purpose, total income includes all of your wages and other income, including income earned by a spouse if you are filing a joint return.

Line F. Credit for other dependents.

When you file your tax return, you may be eligible to claim a credit for other dependents for whom a child tax credit can't be claimed, such as a qualifying child who doesn't meet the age or social security number requirement for the child tax credit, or a qualifying relative. To learn more about this credit, see Pub. 972. To reduce the tax withheld from your pay by taking this credit into account, follow the instructions on line F of the worksheet. On the worksheet, you will be asked about your total income. For this purpose, total

Separate here and give Form W-4 to your employer. Keep the worksheet(s) for your records.

Form W-4 Department of the Treasury Internal Revenue Service		Employee's Withholding Allowance Certificate		OMB No. 1545-0074 2019	
1 Your first name and middle initial Mario A.		Last name Rubino		2 Your social security number 062-70-1566	
Home address (number and street or rural route) 1333 Lincoln Ave		3 ☒ Single ☐ Married ☐ Married, but withhold at higher Single rate. Note: If married filing separately, check "Married, but withhold at higher Single rate."			
City or town, state, and ZIP code Utica NY 13502		4 If your last name differs from that shown on your social security card, check here. You must call 800-772-1213 for a replacement card. ☐			
5 Total number of allowances you're claiming (from the applicable worksheet on the following pages)				5 4	
6 Additional amount, if any, you want withheld from each paycheck				6 \$	
7 I claim exemption from withholding for 2019, and I certify that I meet both of the following conditions for exemption. • Last year I had a right to a refund of all federal income tax withheld because I had no tax liability, and • This year I expect a refund of all federal income tax withheld because I expect to have no tax liability. If you meet both conditions, write "Exempt" here				7 ☐	
Under penalties of perjury, I declare that I have examined this certificate and, to the best of my knowledge and belief, it is true, correct, and complete.					
Employee's signature (This form is not valid unless you sign it.) Mario Rubino					
8 Employer's name and address (Employer: Complete boxes 8 and 10 if sending to IRS and complete boxes 8, 9, and 10 if sending to State Directory of New Hires.)				9 First date of employment	
				10 Employer identification number (EIN)	
				Date 11-25-19	



Department of Taxation and Finance

Employee's Withholding Allowance Certificate**IT-2104**

New York State • New York City • Yonkers

First name and middle initial Marco A.		Last name Rubino	Your social security number 062-70-1566
Permanent home address (number and street or rural route) 1333 Lincoln Ave		Apartment number F12	Single or Head of household ☒ Married ☐
City, village, or post office Utica		State NY	ZIP code 13502
Are you a resident of New York City? Yes ☐ No ☒		Married, but withhold at higher single rate ☐	
Are you a resident of Yonkers? Yes ☐ No ☒		Note: If married but legally separated, mark an X in the Single or Head of household box.	
Complete the worksheet on page 3 before making any entries.			
1 Total number of allowances you are claiming for New York State and Yonkers, if applicable (from line 20)			1 4
2 Total number of allowances for New York City (from line 35)			2
Use lines 3, 4, and 5 below to have additional withholding per pay period under special agreement with your employer.			
3 New York State amount			3
4 New York City amount			4
5 Yonkers amount			5

I certify that I am entitled to the number of withholding allowances claimed on this certificate.

Employee's signature Marco Rubino	Date 11-25-19
---	-------------------------

Penalty – A penalty of \$500 may be imposed for any false statement you make that decreases the amount of money you have withheld from your wages. You may also be subject to criminal penalties.

Employee: detach this page and give it to your employer; keep a copy for your records.**Employer: Keep this certificate with your records.**

Mark an X in box A and/or box B to indicate why you are sending a copy of this form to New York State (see instructions):

- A Employee claimed more than 14 exemption allowances for NYS A ☐
- B Employee is a new hire or a rehire ... B ☐ First date employee performed services for pay (mm-dd-yyyy) (see instr.):

Are dependent health insurance benefits available for this employee? Yes ☐ No ☐

If Yes, enter the date the employee qualifies (mm-dd-yyyy):

Employer's name and address (Employer: complete this section only if you are sending a copy of this form to the NYS Tax Department.)	Employer identification number

Instructions**Changes effective for 2019**

Form IT-2104 has been revised for tax year 2019. Additional allowances are allowed for covered employees of employers who elected to pay the employer compensation expense tax and for employees who made contributions to a New York Charitable Gifts Trust Fund during 2018. The worksheet on page 3 and the charts beginning on page 4, used to compute withholding allowances or to enter an additional dollar amount on line(s) 3, 4, or 5, have been revised. If you previously filed a Form IT-2104 and used the worksheet or charts, you should complete a new 2019 Form IT-2104 and give it to your employer.

Who should file this form

This certificate, Form IT-2104, is completed by an employee and given to the employer to instruct the employer how much New York State (and New York City and Yonkers) tax to withhold from the employee's pay. The more allowances claimed, the lower the amount of tax withheld.

If you do not file Form IT-2104, your employer may use the same number of allowances you claimed on federal Form W-4. Due to differences in tax law, this may result in the wrong amount of tax withheld for New York State, New York City, and Yonkers. Complete Form IT-2104 each year and file it with your employer if the number of allowances you may claim

is different from federal Form W-4 or has changed. Common reasons for completing a new Form IT-2104 each year include the following:

- You started a new job.
- You are no longer a dependent.
- Your individual circumstances may have changed (for example, you were married or have an additional child).
- You moved into or out of NYC or Yonkers.
- You itemize your deductions on your personal income tax return.
- You claim allowances for New York State credits.
- You owed tax or received a large refund when you filed your personal income tax return for the past year.
- Your wages have increased and you expect to earn \$107,650 or more during the tax year.
- The total income of you and your spouse has increased to \$107,650 or more for the tax year.
- You have significantly more or less income from other sources or from another job.
- You no longer qualify for exemption from withholding.

POST-OFFER SELF-IDENTIFICATION FORM

Name: Marco Rubino

Date: 11-25-19

Johnstone Supply is an Equal Opportunity Employer committed to the policies and principles of Non-Discrimination and Affirmative Action.

GENDER: (Check one)

☒ Male

☐ Female

RACE/ETHNICITY:

Are you Hispanic or Latino?

Yes ☐

No ☒

If you answered "No" to the question "Are you Hispanic or Latino?" please check the applicable race box (check one):

☒ White (Not Hispanic or Latino)

☐ American Indian or Alaska Native (Not Hispanic or Latino)

☐ Asian (Not Hispanic or Latino)

☐ Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino)

☐ Black or African American (Not Hispanic or Latino)

☐ Two or More Races – All persons who identify with more than one of the above five races. (Not Hispanic or Latino)

If you selected "Two or More Races" please identify the race with which you primarily identify:

☐ White (Not Hispanic or Latino)

☐ American Indian or Alaska Native (Not Hispanic or Latino)

☐ Asian (Not Hispanic or Latino)

☐ Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino)

☐ Black or African American (Not Hispanic or Latino)

VETERAN STATUS: (Check all that apply)

☒ I am **not** a veteran under any of the categories below. **OR** I am **not** a veteran of the U.S. Armed Forces.

☐ I am a **Disabled Veteran** – (1) A veteran of the U.S. military, ground, naval or air service who is entitled to compensation (or who but for the receipt of military retired pay would be entitled to compensation) under laws administered by the Secretary of Veterans Affairs, or (2) A person who was discharged or released from active duty because of a service-connected disability.

☐ I am a **Recently Separated Veteran** – Any veteran during the three-year period beginning on the date of such veteran's discharge or release from active duty in the U.S. military service.

Enter Date of Separation: _____

☐ I am an **Armed Forces Service Medal Veteran** – Any veteran who, while serving on active duty in the U.S. military, ground, naval or air service, participated in a United States military operation for which an Armed Forces service medal was awarded pursuant to Executive Order 12985.

☐ I am an **Other Protected Veteran** – A veteran who served on active duty in the U.S. military, ground, naval or air service during a war or in a campaign or expedition for which a campaign badge has been authorized, under the laws administered by the Department of Defense.



Direct Deposit Enrollment/Change Form*

Company Name and/or Client Number 0827-6139

Employee/Worker Name Marcus Rubino Employee/Worker Number 735

EMPLOYEE/WORKER: Retain a copy of this form for your records. Return the original to your employer/company.

EMPLOYER/COMPANY: Return this form to your local Paychex office. For clients using on-line services, please retain a copy of this document for your records.

COMPLETE TO ENROLL / ADD / CHANGE BANK ACCOUNTS - PLEASE PRINT CLEARLY IN BLACK/BLUE INK ONLY

Type of Account: ☒ Checking ☐ Savings Accountholder's Name: Marcus A. Rubino

Routing/Transit Number 021300077

Checking/Savings Account Number** 322272025261

Financial Institution ("Bank") Name Key Bank

I wish to deposit (check one): ☒ 100% of Net ☐ Specific Dollar Amount \$ _____ .00 ☐ Remainder of Net Pay

Type of Account: ☐ Checking ☐ Savings Accountholder's Name: _____

Routing/Transit Number _____

Checking/Savings Account Number** _____

Financial Institution ("Bank") Name _____

I wish to deposit (check one): ☐ _____ % of Net ☐ Specific Dollar Amount \$ _____ .00 ☐ Remainder of Net Pay

COMPLETE IF CHANGING EXISTING DEPOSIT AMOUNTS - PLEASE PRINT CLEARLY IN BLACK/BLUE INK ONLY

Type of Account: ☐ Checking ☐ Savings Accountholder's Name: _____

Routing/Transit Number _____

Checking/Savings Account Number** _____

Financial Institution ("Bank") Name _____

I wish to change my deposit amount to (check one): ☐ From _____ % to _____ % of Net ☐ From \$ _____ .00 To \$ _____ .00

☐ Remainder of Net Pay

EMPLOYEE/WORKER CONFIRMATION STATEMENT

PLEASE SIGN IN BLACK/BLUE INK ONLY

I authorize my employer/company to deposit my earnings into the bank account(s) specified above and, if necessary, to electronically debit my account to correct erroneous entries. I certify my account(s) allow these transactions. Furthermore, I certify that the above listed account number accurately reflects my intended receiving account. I agree that direct deposit transactions I authorize comply with all applicable laws. My signature below indicates that I am agreeing that I am either the accountholder or have the authority of the accountholder to authorize my employer/company to make direct deposits into the named account.

Employee/Worker Signature Marcus Rubino Date 11-25-19

Note: Digital or Electronic Signatures are not acceptable.

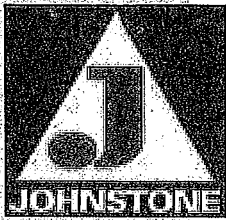
I confirm that the above named employee/worker has added or changed a bank account for direct deposit transactions processed by Paychex, Inc. I have reviewed the information provided and it is accurate to the best of my knowledge. My signature below indicates that I have the authority to execute this document on behalf of the Client.

Employer/Company Representative Printed Name: Ann F. Maynard

Employer/Company Representative Signature: Ann F. Maynard Date: 11/25/19

* All fields are required except Employee/Worker Number.

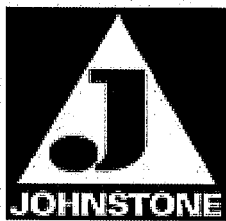
** Certain accounts may have restrictions on deposits and withdrawals. Check with your bank for more information specific to your account.



2020 Benefits Overview – Management *

Benefit	Description	Employee Contribution	Vestment Period
Health Insurance <i>(Premium Only Plan – Section 125)</i>	Excellus SimplyBlue Plus Gold 6 Company covers 100% of the equivalent Silver 19 premium cost and provides a Health Reimbursement Account (HRA) in the amount of \$1,400 single/\$4,300 family	Balance of premium costs not covered by the Company plus applicable out of pocket annual maximum of \$2,800 single/ \$5,600 family less employer provided HRA	None
	Excellus SimplyBlue Silver 19 Company covers 100% of the premium cost and provides an HRA in the amount of \$2,250 single/\$5,500 family	Co-pays up to annual out of pocket maximum of \$6,900 single/ \$13,800 family less supplemental employer provided	None
	Excellus SimplyBlue Plus Bronze 4 Company covers 100% of the premium cost and provides an HRA in the amount of \$2,250 single/\$5,500 family	30% co-insurance up to annual maximum of \$6,750 single/ \$13,500 family less employer provided HRA	None
Health Club Allowance	Company will pay 25% of annual dues to a maximum of \$100/year towards an active membership in a health club subject to prior approval	Any portion over company contribution	Upon the completion of ninety (90) days
Employee Assistance Program (EAP)	A fully integrated work/life Employee Assistance Program (EAP), designed to help effectively balance the competing demands of work and life before personal problems affect professional performance	N/A	Upon the completion of ninety (90) days
Flexible Spending Account <i>(Section 125)</i>	Pre-tax budgeting tool to help pay out-of-pocket medical, dental, vision, prescription drug, and dependent care expenses not covered by other company insurance benefits	Voluntary contribution up to \$2,650 annually for medical; \$5,000 dependent care deduction	One (1) year, over 21 years of age, and works more than 1500 hours per year
Supplemental Short-Term Disability <i>(offered through AFLAC)</i>	Provides earnings coverage for up to 6 months of Temporary Disability when unable to work <i>This benefit supplements coverage for which you are entitled under NYS Disability Law</i>	100%	First of the month following ninety (90) days

Rochester
Syracuse
Lyons



Personal Accident Insurance <i>(Premium Only Plan- Section 125) offered through AFLAC</i>	Pre-tax coverage for benefits payable to you and/or your family in the event of an injury caused by a covered accident including but not limited to travel costs, doctor/hospital visits and physical therapy, etc.	100%	First of the month following ninety (90) days
Personal Cancer Insurance <i>(Premium Only Plan- Section 125) offered through AFLAC</i>	Pre-tax coverage for benefits payable to you and/or your family in the event of a first occurrence determination of cancer Benefits paid to you for use at your discretion to cover expenditures over and above those provided by major medical	100%	First of the month following ninety (90) days
Dental & Vision Insurance <i>(Premium Only Plan- Section 125)</i>	Pre-tax coverage of dental and Vision expenditures for you and/or your family	100%	First of the month following ninety (90) days
Group Term Life Insurance and AD&D Coverage <i>(offered through Mutual of Omaha)</i>	Life insurance coverage for you of \$50,000 Accidental Death & Dismemberment coverage for you of \$50,000. You can elect supplemental term life insurance in increments of \$10,000 up to a maximum of 5 times your annual salary	100% for supplemental term life coverage Spousal and Child(ren) insurance available	First of the month following ninety (90) days
National Holidays	6 paid days annually; New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Christmas Day	N/A	None
Paid Time Off	14 Days per year - weeks are not to be taken consecutively	N/A	First of the month following six (6) months service, prorated during the first year of employment
	Additional 15 th floating PTO day in recognition of your birthday; to be used during the month of your birthday	N/A	15 th PTO day eligible after 3 years of service
Bonus	<u>Negotiable</u> - A performance bonus based on the achievement of qualitative and quantitative goals	N/A	Six (6) – twelve (12) months

Rochester
Syracuse
Lyons



	to be determined within the first 180-360 days of your employment		
Tuition Reimbursement[‡]	Company will pay up to 100% of tuition for job-related courses subject to prior approval	Any portion over company contribution.	One (1) year
Savings and Investment Plan	401K defined contribution plan	Deferral of up to 25% of annual gross wages but not to exceed \$19,500	One (1) year, over 21 years of age, and works more than 1000 hours per year
	Company invests on behalf of each employee a percentage of annual gross wages for all plan-eligible employees in accordance with the following schedule:	Additional \$6,500 catch-up contribution for employees aged 50 and over	
	Employee Contribution	Employer Match	
	1%	1%	
	2%	2%	
	3%	3%	
	4%	3.5%	
	5%	4%	
		Pre-tax and after-tax (Roth) programs available.	

* These benefits do not constitute a contract with the employee and may be subject to change without notice.

[‡] Subject to prior approval. Employee must achieve a minimum grade point average. Actual percentage is at the discretion of management.

NOTE: All Johnstone Supply employees are employed at will

I have received a copy of this document.

Employee Signature

Marco Rubino

Name of Employee (please print)

Marco Rubino

Date

11-25-19

Rochester

Syracuse

Lyons

Acknowledgment of Receipt and Review

By signing below, I acknowledge that I have received a copy of Johnstone Supply of Central NY's Employee Handbook (handbook) and that I have read it, understand it, and agree to comply with it. I understand that the Company has the maximum discretion permitted by law to interpret, administer, change, modify, or delete the rules, regulations, procedures, and benefits contained in the handbook at any time with or without notice. No statement or representation by a supervisor, manager, or any other employee, whether oral or written, can supplement or modify this handbook. Changes can only be made if approved in writing by the General Manager of the Company. I also understand that any delay or failure by the Company to enforce any rule, regulation, or procedure contained in the handbook does not constitute a waiver on behalf of the Company or effect the right of the Company to enforce such rule, regulation, or procedure in the future.

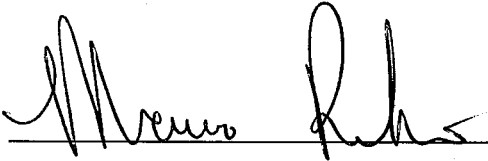
I understand that neither this handbook nor any other communication by a management representative or other, whether oral or written, is intended in any way to create a contract of employment. I further understand that, unless I have a written employment agreement signed by an authorized Company representative, I am employed "at-will" (to the extent permitted by law) and this handbook does not modify my "at-will" employment status.

If I am covered by a written employment agreement signed by the General Manager or a collective-bargaining agreement that conflicts with the terms of this handbook, I understand that the terms of the employment agreement or collective-bargaining agreement will control.

This handbook is not intended to preclude or dissuade employees from engaging in legally protected activities under the National Labor Relations Act (NLRA).

This handbook supersedes any previous handbook or policy statements, whether written or oral, issued by Johnstone Supply of Central NY.

If I have any questions about the content or interpretation of this handbook, I will contact my manager.



Signature

11-25-19

Date

Marco Rubino

Print Name

Receipt of Non-Harassment Policy

It is Johnstone Supply of Central NY's policy to prohibit intentional and unintentional harassment of any individual by another person on the basis of any protected classification including, but not limited to, race, color, national origin, disability, religion, marital status, veteran status, sexual orientation or age. The purpose of this policy is not to regulate our employees' personal morality, but to ensure that in the workplace, no one harasses another individual.

If an employee feels that he or she has been subjected to conduct which violates this policy, he or she should immediately report the matter to the Controller. If the employee is unable for any reason to contact this person, or if the employee has not received a satisfactory response within five (5) business days after reporting any incident of what the employee perceives to be harassment, the employee should contact the President. If the person toward whom the complaint is directed is one of the individuals indicated above, the employee should contact any higher-level manager in his or her reporting hierarchy. Every report of perceived harassment will be fully investigated and corrective action will be taken where appropriate. All complaints will be kept confidential to the extent possible, but confidentiality cannot be guaranteed. In addition, the Company will not allow any form of retaliation against individuals who report unwelcome conduct to management or who cooperate in the investigations of such reports in accordance with this policy. If an employee feels he or she has been subjected to any such retaliation, he or she should report it in the same manner in which the employee would report a claim of perceived harassment under this policy. Violation of this policy including any improper retaliatory conduct will result in disciplinary action, up to and including discharge. All employees must cooperate with all investigations.

I have read and I understand Johnstone Supply of Central NY's Non-Harassment Policy.

Employee's Printed Name: Marco Rubino

Employee's Signature: Marco Rubino

Position: Territory Sales Manager

Date: 11-25-19

The signed original copy of this receipt should be given to management - it will be filed in your personnel file.



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

Smoke and Vape-Free Workplace Policy

Introduction

Johnstone Supply of CNY is committed to providing a safe and healthy workplace and to promoting the health and well-being of its employees. As such, the following policy has been adopted and applies to all employees of Johnstone Supply of CNY.

Policy

It is the policy of Johnstone Supply of CNY to prohibit smoking and vaping on all company premises to provide a safe and healthy work environment for all employees. Smoking is defined as the "act of lighting, smoking or carrying a lighted or smoldering cigar, cigarette or pipe of any kind." Vaping refers to the use of electronic nicotine delivery systems or electronic smoking devices such as e-cigarettes, e-pipes, e-hookahs and e-cigars.

Scope

This policy applies to:

- All areas of buildings occupied by company employees.
- All company-sponsored offsite conferences and meetings.
- All vehicles owned or leased by the company.
- All company employees.
- All visitors (customers and vendors) to company premises.
- All contractors and consultants and/or their employees working on company premises.
- All temporary employees.
- All student interns.

Smoking and vaping are permitted *only* in the following designated outdoor areas:



JOHNSTONE SUPPLY

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eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
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eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

Procedures

Employees who violate this policy will be subject to disciplinary action up to and including immediate discharge.

A process is in place for resolving complaints about the smoke- and vape-free policy:

- Complaints about the application of this policy should be brought to the attention of the Human Resources, Controller or the President for resolution.
- The complaint should be submitted in writing and should identify specific objections.
- Johnstone Supply of CNY will investigate the complaint and resolve it in accordance with the policy.

No employee shall suffer any form of retaliation for raising a complaint or asking a question about this policy.

This policy is intended to comply with the requirements of [title of ordinance].

Statement of Understanding

I have read and fully understand the terms of this policy.

I understand that any violation of this policy will result in disciplinary action up to and including immediate discharge.

I understand that Johnstone Supply of CNY reserves the right to make changes to this policy as needed.

Marco Rubino

Employee Name

Marco Rubino

Employee Signature

11-25-19

Date



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
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eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

EMPLOYEE CONFIDENTIALITY AGREEMENT

As a Member of **JOHNSTONE SUPPLY, Inc.** (the "Cooperative"), **The KL Group, Inc.**, doing business as **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]**, is bound by the terms of the Bylaws of the Cooperative, and Patronage Agreement in place between our company and the Cooperative. Under these Bylaws and Patronage Agreement, we are prohibited from discussing, indicating, or disclosing all correspondences, documents, price information and other materials furnished to us by the Cooperative (other than those sales materials designated by the Cooperative for our customers) ("Confidential Information"). For example, we cannot discuss with or disclose to customers or vendors the costs for which we obtain products from the Cooperative or our vendors, or the terms of the specific programs we have with the Cooperative or these vendors. Such disclosure is grounds for termination of our Membership with the Cooperative and may make us liable for any damages as a result of a breach of confidentiality.

As employees of **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]**, we must conduct ourselves accordingly to protect the security and confidentiality of all such Confidential Information. Any breach of confidentiality by an employee is grounds for termination in accordance with company procedures. Following are the rules of conduct regarding confidentiality:

1. Never discuss our costs for products with anyone outside the company. If you are asked, merely say, "I don't know".
2. Never leave any publications, letters, or written material that discloses our costs, terms, or other Confidential Information anywhere other than in a secure place on the business premises.
3. No copies, electronic or paper, are to be made of any Confidential Information under any circumstances.
4. Never disclose quantities of merchandise that we purchase.
5. No employee is to accept any gifts, gratuities, or other incentives from any vendor, at any time.

Upon termination of employment, employees must return all documentation developed or acquired in the course of employment, including all copies of Confidential Information. This includes cost and program information from vendors, mailing lists, customer lists, accounting data, or any other material that has been deemed confidential.

I understand and agree to the terms of the confidentiality policy of **The KL Group, Inc.**, doing business as **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]**.

Marco Rubino 11-25-19
Employee Date

President, The KL Group, Inc.

Date



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

AUTHORIZATION TO DEDUCT EXPENSES

As a benefit of employment, you are accorded the opportunity to purchase product out of the catalog of **JOHNSTONE SUPPLY** at the cost prevailing at time of purchase. Unless authorized, purchases are intended for personal or immediate family use only.

In addition, you will automatically be set up with a credit limit allowing you to charge purchases with net 30-day terms. Having this benefit will allow you to use **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]** as a credit reference when applying for credit elsewhere. Your credit limit will be reviewed periodically and adjusted accordingly.

Obviously, abuse of this privilege puts this benefit at risk for you. Payment of obligations beyond terms and without previous authorized consent will suspend your benefit. Upon termination of employment, this benefit is voided, and all outstanding obligations are immediately due. Finance charges and collection expenses, if any, may also apply.

Since this is a benefit and a privilege of employment with **JOHNSTONE SUPPLY of Central NY** you are not obligated to use it, however, should you wish to take advantage of this unique opportunity you are asked to authorize the company to collect past due expenses by payroll deduction.

* * * *

I have read the information above and do hereby authorize **The KL Group, Inc., d/b/a JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]** the right to deduct any past due expenditures for company services or products acquired during the course of my employment for personal use from my paycheck.

Mario Rubino
Employee

11-25-19
Date

I have read the information above and do **not** wish to partake of the benefit offered to me.

Employee

Date



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EMPLOYEE ACCOUNT APPLICATION

Employee Name: Marco Rubino
Address: 1333 Lincoln Ave
Address 2: _____
City/ST/Zip: Utica
County: Oneida
Phone: 315-235-9572 Fax #: _____
Cell#: _____ Other #: _____
Email Address: aramarjus78@gmail.com
I, Marco Rubino SS# 062-70-1566
OR Driver's License # 412321782

I hereby personally guarantee to you, Johnstone Supply of CNY, any obligation of the above named Employee and/or its successor. I also agree to bind myself to pay you on demand any sum, which may become due to you by the above named Employee, whenever the above named Employee fails to pay the same. If credit is granted, I agree to pay within established terms. If payment is not made within terms, I agree to pay all service charges. In the event this account is referred amount of twenty-five percent of the principal amount. If suit or action by an attorney amount of twenty-five percent of the principal amount. If suit or action by an attorney for collections, I agree to pay cost of collection equal to a minimum is instituted, I promise to pay attorney fees in said suit or action. Venue shall be in the state and county of Johnstone Supply's choice. Applicant specifically understands that they are waiving their right in choice of venue. Applicant agrees to pay interest and service charges at the highest rate permitted by law.

Signed: Marco Rubino
Date: 11-25-19

"National Supplier to the Service Industry Since 1953"